

Uttarakhand State Protection of Cow Progeny Rules, 2011

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State of Uttarakhand - Act

Uttarakhand State Protection of Cow Progeny Rules, 2011

UTTARAKHAND

India

Uttarakhand State Protection of Cow Progeny Rules, 2011

Rule UTTARAKHAND-STATE-PROTECTION-OF-COW-PROGENY-RULES-2011 of 2011

Published on 23 November 2011

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Uttarakhand State Protection of Cow Progeny Rules, 2011

Published vide Notification No. 1277/XV-1/2(34)/09 dated 23.11.2011

Last Updated 28th January, 2020

In pursuance of the provisions of clause (3) of Article 348 of "the Constitution of India", the Governor is pleased to order the publication of the following English translation of notification no. 1277/XV-1/2(34)/09 dated November 23, 2011 for general information :

No. 1277/XV-1/2(34)/09. - In exercise of the powers conferred by sub-section (1) of section 13 of the Uttarakhand Protection of Cow Progeny Act, 2007 (Uttarakhand Act No. 06 Year 2007), the Governor is pleased to make the following rules :-

1.

Short Title, Extent and Commencement.

(1)

These rules may be called the Uttarakhand Protection of Cow Progeny Rules, 2011.

(2)

They shall be in force in the whole State of Uttarakhand.

(3)

These rules shall come into force on the date of publication in the official Gazette.

2.

Definitions.

- In these rules, unless there is anything repugnant in the subject or context-

(a)

"Act" means the Uttarakhand Protection of Cow Progeny Act, 2007;

(b)

"Cow Progeny" means cow, bullock, bull, female heifer and male heifer;

(c)

"State Government" means the State Government of Uttarakhand;

(d)

"Proforma" means the proforma given in the schedule to these rules;

(e)

The areas under the Local Authority will be the Gram Panchayat, Kshetra Panchayat, District Panchayat, Municipality and Municipal Corporation.

3.

Information to be given of diseased animal.

- The cow progeny belonging to any person and suffering from any infectious/communicable disease or believed to be in a painful condition and suffering from an incurable disease notified by the State Government, the communication of which is likely to cause danger to not only livestock but to human life also, can apply on Proforma "1" to the nearest Veterinary Officer for getting the cow progeny examined for confirmation of the said disease.

4.

Examination of the diseased animal.

- The Veterinary Officer shall inform the applicant about the date, time and place for the examination of the diseased animal and carry out the examination of the animal and if it is proved that the said animal is suffering from a infectious/communicable disease notified by the State Government which is incurable and the animal is in pain, then the said officer shall issue a certificate on Proforma "2" for the euthanasia of such Animal Veterinary Officer will ensure that his diagnosis and decision to the effect is also put in writing on the original application.

5.

Clinical examination of the diseased animal.

- The Veterinary Officer shall ensure the carrying out of all necessary clinical and pathological examinations of the infectious/communicable disease as notified by the State Government, the cost of which will be borne by the applicant.

6.

Euthanasia.

- On receipt of the certificate on prescribed Proforma "2" the applicant shall arrange for the euthanasia of the said cow project through minimum possible painless method on his own land/premises or at a place earmarked for the purpose.

7.

(1)

Whenever any cow progeny is to be euthanized then as soon as the person who has euthanized or arranged for it will inform the officer who has issued the certificate on Proforma "2" in writing on Proforma "3" with in 24 hours.

(2)

Such cow progeny shall be buried deep on the land of the animal owner or any other place determined for the said purpose by the Local Authority.

8.

Transport of cow progeny outside the State.

(1)

The District Magistrate of every district shall be the competent authority regarding transportation of cow progeny outside the State.

(2)

The District Magistrate shall ensure that the transportation of cow progeny outside the State shall be as per the provision of section 6 of the Uttarakhand Protection of Cow Progeny Act, 2007 and shall ensure that their transportation is being done for the purpose of their protection, promotion and their rearing and there is no threat of slaughter or smuggling after transportation.

9.

Representation for transportation and enquiry.

- Before the transportation of cow progeny outside the State, the applicant shall declare the purpose for which such animals are to be transported outside the State. Out of all such purposes, permission for transportation of such animals outside the State shall be granted for the following purposes :-

(1)

on declaration of purpose of transportation of cow progeny for protection, the applicant should submit certified copy of recognition of the organization for cow welfare, brief introduction of the organization and achievements of organization in the area of cow progeny welfare .

(2)

on declaration of purpose of transportation of cow progeny for promotion the application shall clarify the name of propagation scheme for which the applicant is applying for transport of cow progeny out side the State, name of funding agency, no objection certificate from the State Government to which the cow progeny transportation is proposed and complete information about the scheme, Certified copies of the above documents will be enclosed along with the application.

(3)

on declaration of the purpose of transportation for rearing of cow progeny, the applicant shall provide -

(a)

own identity will have to be produced (photo identity card or domicile certificate or a copy of any other document will be produced) ;

(b)

the applicant will have to prove that the proposal for the transport of the cows is for the purpose of milk production or for the production of their progeny or for agricultural purpose or other agriculture related works only and under any circumstances there is no threat or slaughter or smuggling or cow progeny. For this purpose the applicant will have to produce a copy of the Kisan Bahi certified by the Revenue Department or a copy of any other document;

(c)

the applicant will have to prove that he has never been involved previously in any case, involving the killing of cow progeny or their smuggling. In proof whereof a verification of character from the local police station will have to be produced;

(d)

in cases of transportation of cow progeny outside the State for the purpose of rearing, the documents submitted by the applicant i.e. identity certificate/kisan bahi/document regarding non involvement of the applicant in any crime against cow progeny will be verified/inquired by a first class Magistrate and on completion of this enquiry report will be submitted on prescribed Proforma. (Proforma "4");

(e)

a certified copy of the counter file of the animal sale certificate will have to be produced on prescribed Proforma. (Proforma "5" and "6");

(f)

for the transportation of the cow progeny for the purpose of rearing, the applicant will have to submit the following affidavit :-

(i)

the proposed transport of the cow progeny is not being done with the objective of killing or smuggling them. Under any circumstances this cow progeny will not be used for the purpose of killing or smuggling;

(ii)

the applicant has never been involved in any incidence of killing/smuggling of cow progeny nor has he ever been involved in the planning for the killing or smuggling of cow progeny nor has he been an accomplice in these crimes;

(iii)

the cow progeny proposed to be transported outside the State will be looked after properly by the applicant. In case these cows fall sick then they will be treated by the Government Veterinary Officer of the nearest Veterinary Hospital. In case of death the postmortem examination will be conducted by the Veterinary Officer of the nearest Government Veterinary Hospital;

(iv)

the cow progeny proposed to be transported out side the State will not be sold by him to an unknown person. The cow progeny will be sold to only those persons well known to the applicant and capable of rearing them properly. The applicant will keep the sale receipt and other documents regarding sale safely and well preserved.

(v)

the applicant will never sell cow progeny to a person who has been previously involved/assisted/prosecuted in smuggling of cow progeny;

(vi)

in case the cow progeny are to be transported more than 05 kilometer on foot then their transport shall be as per the Prevention of Cruelty to Animals (Transport of Animals on Foot Rules, 2000) framed under the Prevention of Cruelty Act, 1960 and if the animals are to be transported by vehicle then in that case this will be done as per the provisions of the, "Transport of Animal Rules, 1978" and Transport of Animal (Amendment) Rules, 2009 framed under the Prevention of Cruelty to Animals Act, 1960;

(vii)

under sub section (2) of section 6 of the Uttarakhand Protection of Cow Progeny Act, 2007, for the transport of cow progeny outside the State a fee of j 500/- per cow progeny will be paid by him/her into the Government Treasury. On receipt of the permit the transport of the said cow progeny will be allowed.

10.

Prohibition of permission of transportation.

- The permission for the transport of cow progeny will never be granted to such person who himself or his relatives have been accused or included or an accomplice under any Act related to the prevention of cow slaughter or the protection of cow progeny.

11.

Maintenance of document.

- The maintenance of documents related to the granting of permission for the transport of cows and their progeny outside the State will be done by the Chief Veterinary Officer.

12.

Health examination of animals.

- Under the "Transport of Animal Rules, 1978", Transport of Animal (Amendment) Rules, 2009 and the Prevention of Cruelty to Animals (Transport of Animals on Foot Rules, 2000) framed under Section 38 of the Prevention of Cruelty to Animals Act, 1960 prior to purchase of animal, every such animal will under go a health examination by the local Veterinary Officer and "fit to move on foot certificate" in case of transportation on foot or in case of transportation by vehicle "fit to move on vehicle certificate" shall be obtained by the owner. The proforma for the issue of above certificates will be same as detailed in the above rules of the Central Act.

13.

Presentation of proforma.

- In each instance the applicant shall apply as per fixed "Application Proforma" (Proforma "7") and shall submit all necessary documents. Before forwarding the proposal to the District Magistrate the Chief Veterinary Officer shall give recommendation on "Designated Proforma for recommendation" (Proforma "8") to the former. The Chief Veterinary Officer shall ensure that the cow progeny is being transported outside the state as per the Uttarakhand Protection of Cow Progeny Act, 2007 only for protection, promotion or rearing and there is no threat of killing or smuggling of cow progeny.

14.

Enquiry by the observation chowkis.

(1)

The check posts/observation chowkis of the police department, trade tax department, district panchayat and other Government departments shall give permission for the transport of cow progeny outside the State provided the applicant has deposited a fee of j 500/- per animal and there after obtained the permit from the District Magistrate for the said purpose under section 6 of the Uttarakhand Protection of Cow Progeny Act, 2007 (Proforma "9").

(2)

Each and every check post/observation chowki shall ensure that transportation of cow progeny by vehicle is being done as per provisions Transport of Animal Rules, 1978 and Transport of Animal (Amendment) Rules, 2009 framed under Section 38 of the Prevention of Cruelty to Animals Act, 1960.

15.

Limitation of on foot transportation of animals.

- Each and every check post/observation chowkis shall pay special attention the transportation of cow progeny on foot is being done as per the provisions of the Prevention of Cruelty to Animals (Transport of Animals on Foot Rules, 2000) framed under Section 38 of the Prevention of Cruelty to Animals Act, 1960.

16.

Responsibility on smuggling of cow progeny.

- The check posts/observation chowkis if found to be negligent in matters relating to the smuggling of cow progeny outside the State then the employees of such check posts/observation chowkis will also be held guilty of contravening the provisions of Sub Section (1) of Section 6 of the Act and will be punished as per Section 11(2) of the Act.

17.

Confiscation of cow progeny.

- Cow progeny transported without a valid permit shall be confiscated and shall be kept in Cow shelters and such person, who cause unauthorized transportation will be punished under sub section (2) of section 11 of the Act.

18.

Registration of cow progeny for rearing.

- For registration of their cow progeny in urban areas the re-rears apply for registration of their animals on prescribed Proforma to the Mukhya Nagar Adhikari/Executive Officer on prescribed format. (Proforma "10")

19.

To provide application form and health examination certificate.

- The Mukhya Nagar Adhikari/Executive Officer shall forward the application forms to the Veterinary Officer of the concerned area under intimation to the applicant for receiving the Health Certificate (Proforma "11") and forwarded application letter for his/her cows or their progeny from the latter and make it available to the former. Health certificate will be prepared in three copies.

20.

Identification and Markation.

- For the documentation of individual identity of each cow progeny and to certified the health of the cow progeny, the concerned Veterinary Officer will mark the cow progeny of the owner either using ear tag or any other better technique. The ear tag number will be recorded on the health certificate thus issued. The Department of Animal Husbandry will provide the tags for this purpose to the concerned Veterinary Officers.

21.

Fee.

- The animal owner will pay the fee as determined by the State Government for the issue of each cow progeny health certificate.

22.

Registration.

(1)

After receiving the health certificate, the Mukhya Nagar Adhikari/Executive Officer shall issue a registration certificate (Proforma "12") to the animal owner in which the ear tag number will be treated as the registration number and entered on the registration certificate issued thereof. Registration certificate will be prepared in three copies.

(2)

The Mukhya Nagar Adhikari/Executive Officer shall enter the details of each animal owner and the details of the

registered cow progeny in the cow progeny registration register.

23.

Procedure of registration in circumstances of losing ear tags.

- If in case the ear tags of the animals registered earlier falls off and is lost, the animal owner will inform the Mukhya Nagar Adhikari/Executive Officer in writing in this regard who in turn shall inform the Veterinary Officer, who shall then re-tag the animal with a new ear tag and inform the Mukhya Nagar Adhikari/Executive Officer regarding the same.

24.

Fine.

- If any person contravenes the provisions of section 8 or makes an attempt to contravene these provisions then that person will be punished under sub section (3) of section 11 of the Act.

25.

Establishment of institutions for maintaining of cow progeny.

(1)

For establishing institutions for taking care of uneconomic cow progeny application of following Non-Government Organizations registered under the Societies Registration Act, 1860 will be accepted :

(a)

the organization must be registered for the welfare of cow and other animals;

(b)

registered as a religious organization working on no loss no profit basis for the welfare of cows and their progeny;

(c)

or a registered public trust as per law.

The applicant organizations having a minimum of 3 years of experience in the field of care and welfare of cows and their progeny will be given priority.

(2)

Those organizations which have their own land which is free from any dispute and is in the possession of the applicant organization will be given preference. The applicant organization will have to give certified copies of the documents regarding State Government not issuing any gazette notification for acquiring the proposed land and in case the proposed land on lease then proof regarding period of lease being for next 30 years.

(3)

The applicant organization will have to apply on prescribed application form (Proforma "13") through Chief Veterinary Officer of the concerned district :

Provided that the ownership of the land is not with the applicant organization but the applicant organization has a guarantee of having availability of land for a period of 30 years and based on the documents submitted by the applicant organization (Land/Building Rent/Certified contract letter by a Notary in respect of the land to be provided on donation) the organization may be provided sanction for temporary construction (Tin Sheds).

26.

Grant.

- The sanction of State Government grant to applicant Non-Governmental Organizations for the establishment of institutions for uneconomic cow progeny will be based on the number of cow progeny being provided shelter by them. All such applications received will be divided into the following six categories :-

(a)

In plain areas, organizations having a capacity of housing 50 cows;

(b)

In plain areas, organizations having a capacity of housing 100 cows;

(c)

In plain areas, organizations having a capacity of housing 200 cows;

(d)

In hill areas, organizations having a capacity of housing 50 cows;

(e)

In hill areas, organizations having a capacity of housing 100 cows;

(f)

In hill areas, organizations having a capacity of housing 200 cows;

Provided that if the applicant organization is housing 50 cows then in the first phase that organization may be sanctioned Government grant for the establishment of institution for 50 cows only. In the same manner for the applicant organization housing more than 50 but less than 100 cows Government grant may be sanctioned for the establishment of institution for 100 cows only in the first phase and the organizations housing more than 100 but less than 200 animals then the applicant organization may be sanctioned Government grant for the establishment of institutions for 200 cows only in the first phase.

27.

Category of grant.

- All such grants shall be sanctioned under these six categories under Rule, 26 only. The concerned applicant organization shall initially submit an initial estimate of site plan layout of the proposed construction at the proposed site. After the policy decision for the construction has been made the applicant will have to submit a blue print of the site plan layout along with a head wise estimate of the same. The estimates to be submitted shall be on the approved rates of the Public Works Department and the rates shall be approved thereafter.

28.

Operation of Cow shelter.

- The buildings established/constructed and the equipments/ materials accrued as a result of this Government aid will not be used for any other purpose but the Government reserves the right to make use of the buildings/ equipments for any other purpose if the organization does not run the Gau Sadan up to its full capacity.

29.

Enquiry of applications.

- All the applications will be examined by competent authorities. After examination of all issues related to these applications by the competent authority the following committee will select the organizations for grant of Government aid:-

(a)

Hon'ble Minister of Animal Husbandry, Government of
Uttarakhand

-

Chairman

(b)

Deputy Chairman, Uttarakhand Gau Sewa Ayog

-

Member

(c)

Secretary, Animal Husbandry, Uttarakhand Government

-

Member

(d)

Head of the Department, Department of Animal Husbandry,
Uttarakhand

-

Member

(e)

Secretary, Uttarakhand Gau Sewa Ayog

-

Member Secretary

(f)

Secretary, Uttarakhand Animal Welfare Board

-

Member

(2)

The selection of the applicant organization by the Selection Committee will be final. The Committee reserves the right to cancel any application without assigning any reason thereof.

30.

Contract for financial aid.

- Prior to the grant of Government financial aid the applicant organization shall have to sign and produce an effective agreement for a minimum period of 5 years. In the event of violation of the terms and conditions of the agreement all financial aid/grant will have to be deposited with interest in the Government Treasury. The following terms and conditions may definitely be incorporated in the agreement :-

(i)

The applicant organization will have to give in writing that the land of the organization is not under dispute Government has not notified for acquisition of this land the gazette and this land is in the possession of the said land. In case the land is under lease then lease should be for next 30 years. No land will be purchased with the grant money received from the Government;

(ii)

The applicant organization will be responsible for the arrangement of upkeep, housing arrangement, fodder and feed, straw and water for these animals;

(iii)

The applicant organization shall be bound to receive/keep the animals brought to the institution up to its maximum strength;

(iv)

The applicant organization will get the treatment of all the sick animals done from the Veterinary Officer of the Local Veterinary Hospital;

(v)

The applicant organization shall be responsible for the management of buildings/ constructions provided to it;

(vi)

The constructions/buildings built with Government financial aid will be used for the same purpose as prescribed in the agreement/purpose mentioned and in the application by the applicant for the grant of aid;

(vii)

The constructions/buildings built out with the grant in aid will neither be sold nor will be let out on rent;

(viii)

A separate account will be opened in the bank for this grant in aid and accounts for the same will be maintained separately by the organization. The inspection of these accounts can be carried out by the officers of the Government, Administrative Officers, Officers of the Uttarakhand Gau Sewa Ayog, Uttarakhand State Animal Welfare Board, and the Hon'ble members of the Selection Committee;

(ix)

The construction works to be completed with the help of this grant in aid shall be carried out by the applicant organization within a period of two years. The grant in aid will be utilized under the heads in which the amount has been sanctioned. After completion of the construction, completion certificate from competent authority will have to be submitted certifying that the construction has been carried out as per the sanctioned layout and approved estimate;

(x)

The applicant organization after completion of construction works shall get the accounts for the same audited from the authorized auditors for the purpose and forward their report to the Government;

(xi)

The applicant organization shall submit a monthly progress report regarding the progress of the construction work through the office of the Chief Veterinary Officer of the concerned district;

(xii)

The applicant organization will get their accounts audited every year;

(xiii)

on the completion of the financial year the organization shall forward the details of their accounts through the Chief Veterinary Officers of the concerned districts;

(xiv)

In case there is violation of the terms and conditions of the agreement by the applicant organization then the grant in aid shall have to be deposited with interest in the Government Treasury;

(xv)

The applicant organization shall not make any major changes in the original proposal without prior permission;

(xvi)

The applicant organization shall be inspected from time to time by the officers of the Department of Animal Husbandry, Accountant General of Uttarakhand and other officers of the state department. The applicant organization shall provide complete co-operation during these inspections;

(xvii)

In case of any dispute, the decision of the Head of the Department Animal Husbandry, Uttarakhand shall be final;

(xviii)

All disputes relating to the matter shall be subject to the jurisdiction of the Courts within the State of Uttarakhand.

31.

Presentation of records.

- After the completion of the construction work the applicant organization shall submit the following documents :-

(a)

a certificate to the effect that the constructions have been completed as per the approved site plan and as per approved estimates;

(b)

an audit certificate of the expenditure records of construction works issued by the authorized auditors.

32.

Maintenance of unproductive cow progeny.

- For keeping unproductive cow progeny in the institution, cost of its transportation, feeding and treatment shall be payable by the owner of the cow progeny to the institution at the rates as specified by the District Magistrate.

Schedule

Proforma "1"

Application for Certificate for Communicable/Infectious Diseases

To,

Veterinary Officer,

Sir,

It is requested that my animal (description of age and colour of animal) which is suspected to be suffering from the notified communicable/infectious disease or an untreatable disorder and is suffering from a painful condition may kindly be examined and I may be provided a certificate for euthanasia of the said animal.

Your's Sincerely,

Name

Signature

Address

Date

(To be filled in by the Veterinary Officer)

Date and Place fixed for the examination of the animal

Applicant intimated by on

The date and place of the examination of the animal

Findings

The animal is suffering/not suffering from the.....disease.

My reasons for the findings are :

.....

.....

.....

Date

Veterinary Officer,

District.

Proforma "2"

Certificate of disease

IVeterinary Officer

have examined the and do hereby certify that the animal is suffering from thenotified communicable/infectious disease or suffering from an untreatable disorder and may be euthanized.

Date

Veterinary Officer.

Proforma "3"

Information of Death

To,

Veterinary Officer,

.....

.....

Sir,

It is to inform that has been euthanized..... on dated at (time) at (Place) based on the certificate No. dated issued by the Veterinary Officer.

Dated

Signature of Animal Owner

Address

(Proforma "4")

Proforma for the verification of the facts of the transportation of cow progeny for the purpose of rearing

It is certified that-

The applicant has submitted/not submitted all documents in respect of permission for the transport of cow progeny as per the provisions of the Uttarakhand Cow Progeny Protection Act, 2007.

The documents submitted by the applicant have been examined and the identity of Mr./Ms./Mrs. R/o P.O. Tehsil District is certified.

The verification of the documents submitted for the transport of cows and their progeny outside the state for the purpose of rearing has been done. After having verified the documents submitted the fact has been established that the animals are being transported for the purpose of milk production or production of progeny or for agriculture purposes.

The document issued by the police Thana of that area certifying that the applicant is/has never been involved in incidences of killing and/or smuggling of cows and their progeny.

Thereafter a sworn affidavit to the effect that the cows and their progeny will not be slaughtered or smuggled has been obtained from the applicant. It does not appear in this instance that the cows and their progeny will be slaughtered or smuggled.

The permission for the transport of cows and their progeny outside the state is granted/not granted as per the provisions of the Uttarakhand Protection of Cow and its Progeny Act, 2007 is.

(Signature of Class-I Magistrate)

Name

Seal

(Proforma "5")

Proforma for the Counter File to be maintained at the time of purchase of cows and their progeny from a recognized animal fair

Name of the Animal Fair Organizing Organization

Name of the Animal Fair Place

Date and duration of the Animal Fair

Counter Foil No.

Details of the Animal Seller

Details of the Animal Purchaser

Description of the Animal

Details of the Progeny with the Adult Female

Animal

Documentations by the concerned departments

Name

Name

Species

Species

Serial No. of the Certificate Issued by the
temporary camp of the department of animal husbandry

Registration No.

Registration No.

Registration No.

Registration No.

Father's Name

Father's Name

Breed

Breed

Village

Village

Sex

Sex

Registration No. of the certificate issued by
the temporary camp of the Forest Department

Post Office

Post Office

Lactation

Age

Block

Block

Age

Colour

Tehsil

Tehsil

Colour

Horns

District

District

Horns

Tail

State

State

Tail

Other Recognizing Features

Registration No. of the Enquiry report issued
by the temporary camp of the Revenue Department regarding the
identity, Kisan Bahi and the reason for which the animal is
being purchased

Thumb Impression or Signature of Seller

Thumb Impression or Signature of Purchaser

Other Recognizing Features

State of Pregnancy

Cost of Animal

Signature of the Representative of the Organizing Department.....

Date.....

Seal.....

(Proforma "6")

Proforma for the Counter File to be maintained at the time of purchase of cow progeny from the animal owner's doorstep

Counter Foil No.

Details of the Animal Seller

Details of the Animal Purchaser

Description of the Animal

Details of the Progeny with the Adult Female

Animal

Documentations by the concerned departments

Name.....

Name.....

Species.....

Species.....

Witness No. 1:

Registration No.

Registration No.

Registration No.

Registration No.

Signature :

Father's Name

Father's Name

Breed

Breed

Name :

Village

Village

Sex

Sex

Father's Name :

Post Office

Post Office

Lactation

Age

Address :

Block

Block

Age

Colour

Tehsil

Tehsil

Colour

Horns

Witness No. 2:

District

District

Horns

Tail

Signature :

State

State

Tail

Other

Name :

Recognizing

Features

Father's Name :

Address :

Thumb Impression or Signature of Seller

Thumb Impression or Signature of Purchaser

Other Recognizing Features

Stage of Pregnancy

Cost of Animal

(Proforma "7")

Proforma for the application of transport of cow progeny outside the state as per the provisions of the Uttarakhand Protection of Cow Progeny Act, 2007, Section 13 (2 B)

To,

District Magistrate-District

(Competent Authority under Section 6 of the Act)

Sir/Madam,

I, S/o resident of Village..... Post Office
..... Police Thana Tehsil District..... (Certified copy of identity
card should be enclosed) intend to transport cow/cow calf/cow heifer/cow bull/bullock from
(Place).....to(Address of destination) the following
colour..... age sex (complete details of the certificate issued under the
prevention of Cruelty to Animal Act, 1960 with regard to the transport of animals) request you to kindly grant me
permission letter for the same. The animal (s) has been purchased from (Name) (Resident
of) (Post Office) Tehsil District
..... (Certified copy/counterfoil of the sale letter enclosed).

The transport of the animal is being done for the purpose of in this context :

Purpose - On declaration for the purpose of protection of cow progeny the applicant shall provide a certified copy of the certificate of recognition of the organizations commitment to the welfare of the animals. A certified copy of the records regarding the brief introduction of the organization and the achievements in the area of cow and its pro-genies welfare will be enclosed with the application.

or

Purpose - On declaration for the purpose of propagation of cow progeny the applicant will specify that the application for transport of cow progeny outside the state is being done for the purpose of their propagation, name of the financing agency for the scheme, the state to which the animals are proposed to be transported, no objection certificate from that Government as well as complete information regarding the scheme and will provide a certified copy of these documents along with this application.

or

Purpose - On declaration for the purpose of rearing of cow progeny the applicant will submit a copy of his Kisan Bahi certified by the Revenue Department along with the an sworn affidavit that the applicant will not sell the said animals and in case they are soled then all records pertaining to their sale will be kept securely and he/she has never been involved in the killing/smuggling/any cruelty against cows and their progeny and in case these animals fall ill then they shall be

got treated from the Government Veterinary Hospital of the area and in case of death the postmortem examination of the animal shall be got done from the Government Veterinary Hospital. This affidavit shall be witnessed by two representatives of recognized organization involved in the protection, propagation and welfare of cows and their progeny.

Your's Sincerely,

Name and Signature of Applicant

Complete Address :

Note - In case the application is rejected then the reason thereof shall be clearly indicated on the application.

(Proforma "8")

"Designated Proforma for recommendation by the Chief Veterinary Officer"

1. Name of the person applying for permission of transport of animals
2. Name of the person receiving the animals
3. Name and address of transporter/company and the Vehicle No.
4. Has a fit to be transported certificate been issued by the Veterinary Officer.

Clarify that-

The animals are not suffering from a communicable disease and are of sound health for then to be transported-

(A)

None of the animals intended to be transported is unhealthy meaning that none of the animals are new born or sick or blind or weak or excessively exhausted and in the past 74 hours none of the female animals has given birth to a new born and that during their transport none of the animals is expected to give birth:

(B)

The pregnant female animals have not been mixed and transported along with the other animals:

(C)

The arrangement for keeping and transporting them has been done species wise/age wise/sex wise:

(D)

The sick animals have not been kept along with the healthy animals:

(E)

For the control of excited and problem causing difficult animals the use of tranquilizing injections has been done at the time of loading them onto the vehicles:

5. The purpose for which the animals are being transported.
6. List of other documents submitted along with the application :

(A)

(B)

(C)

(D)

(E)

(F)

(G)

(H)

(I)

(J)

7. Has the arrangement for the feeding, watering, rest and the milking of the in milk animals been done :

8. Proposed time, date and vehicle for the transport of animals :

9. The names of the different places that will fall along the transport route and the expected time and date of arrival and departure :

Sl. No.

Date

Place

Expected time of arrival

Expected time of departure

1.

- 2.
- 3.
- 4.
- 5.
- 6.
- 7.
- 8.
- 9.
- 10.

10. The proposed place for inspection by the competent authority of the Animal Welfare Board of India :

All the documents enclosed in the application are true to the best of my knowledge. All Central and State Acts, Rules and Government Orders have been followed.

Applicants Signature.

Certificate

It is certified that-

As per the provisions of the prevention of Cruelty to Animals Act, 1960 the animals to be transported have been issued with/not been issued a "certificate of fitness for transportation".

The applicant has submitted/not submitted all the document required for applying for permission for the transport of animals as per the provisions of the Uttarakhand Protection Cow and its Progeny Act, 2007 and the identity of the applicant and the verification of the purpose for which the animals are being transported outside the state has been done.

Permission is hereby granted/not granted for the transport of cows and their progeny outside the state as per the provision of the Uttarakhand Cow and its Progeny Act, 2007.

(Chief Veterinary Officer)

District

(Proforma "9")

Permit for Transportation of cow progeny

Sri S/o Resident of
..... P.O. Police Station District
..... is here by authorized to transport cow/bull, bullock from
..... to (address of destination) by rail/road for the purpose of
..... (Brief description of animals).

Dated Signature and Seal of District Magistrate.

(Proforma "10")

Application for Registration of Cow Progeny

To,

Mukhya Nagar Adhikari/Executive Officer,

Nagar Palika/Nagar Nigam,

District.....

Sir,

I, S/o Resident of Post
Office..... Police Station..... District request you to
register my animals as per details given below :

Detail of Animals

Your's faithfully,

Name and Signature of Applicant.

(Proforma "11")

Health Certificate to be issued by the Veterinary Officer

Name of animal owner Name of Father of animal owner Address
..... H. No. Post Office Police Station
..... District Phone Number

Description of Animals

Sl.No.

Animal

Sex

Tag No.

Breed

Colour and age

Natural Marks

I, hereby certify that I have examined the above mentioned animals and found them to be healthy and have ear tagged them.

Dated

Signature

Name of Veterinary Officer

Address

Office Seal

(Proforma "12")

Registration Certificate of Cow Progeny

As per the health certificate No. issued by Veterinary Officer, Govt. Veterinary

Hospital..... following animals of Sri S/o
..... Resident Post Office Police Station
..... District are registered as given below :

Sl. No.

Animal

Sex

Tag No

Signature, Seal and Date of

Mukhya Nagar Adhikari/Executive Officer.

(Proforma "13")

Application for establishment of institution by Non-Government Organizations for taking care of uneconomic cow progeny

1. Organization Introduction-

Name

Address

Pin code

Telephone no./STD code

Fax

E-mail

2. Name and Address of the members of the organization :

3. Is the organization recognized by Animal Welfare Board of India?

If yes, then code number :

4. Is the Organization Registered under Societies Registration Act or Trust Act or Foreign Contribution Act?

a. Please Attach an attested photocopy of Registration Certificate :

b. Registrar Office :

c. Registration Number :

d. Date of Registration :

5. Year of establishment/Attested Photocopy of memorandum of Association and Bye-laws :

6. Land :

a. Total Land Available :

b. Whether the land is registered in the name of the organization?

If yes then attach attested photocopies of the records.

c. Is the land in possession of the organization?

If yes then specify from when it is in the possession of organization.

d. How the land has been obtained? Attach photocopies of the records :

? Obtained through Purchase?

? Obtained through Donation?

? Obtained on lease for 30 years?

? Government Land?

? Land donated by local bodies?

7. Audited Accounts for the last 3 years which should contain the Balance Sheet, Income and Expenditure A/c and Receipt and Payment A/c :

8. Available Veterinary Services/First Aid Facility :

a.

Veterinary surgeon available

Yes/No

If yes, number, Full time/Part time/Contractual/Voluntary

b.

Para veterinary staff - Available

Yes/No

If yes, number, Full time/Part time/Contractual/Voluntary

c.

In house Dispensary

Yes/No

d.

Lifting Van/Ambulance

Yes/No

9. Source of Feed and Fodder for animals and storage Facility :

a.

Facility of Grassland for Animals.

b.

Source of Dry Fodder

c.

No. of fodder trees in the campus and their average yield.

d.

Area under fodder grass cultivation and its average yield.

e.

Availability of manger - Number

f.

Arrangement of Dry fodder stores
Number and Size

g.

Arrangement of stores for other fodder
Number and Size

h.

Availability of chaff cutter
Number and Size

10. Other resources and facilities Available-

Electricity

Bulb

Tube
Light Fans
Tube well/Bard-well/Motorized Pump
Motorized Chaff cutter
Water source (Well/Bare well/Hand pump/Natural source/River/Water supply connection Facility for water storage
Overhead Tank
- Number
Capacity -
Storage Tank (Cement)
- Number
Capacity -
Storage Tank (Plastic)
- Number
Capacity -
Water Manger
- Number
Drainage System
Arrangement for urine collection
Arrangement for dung collection
Arrangement of Fodder pits
Sanitary Conditions
Facilities of utensils for preparing food
11. Details of office records-
Titles of office registers
Titles of office files
Other records
12. Number of Beneficiaries with your organization
(Details as per Annexure-1 with this application form)
13. Whether the organization has started utilization of Gobar Gas?
If yes, then give progress report
14. Whether the organization has started work on wormi culture?
15. Whether the organization has started distillation of cow urine?
16. Detail of Animals rescued by the organization :
News paper cutting/Photographs/V.C.D. or any other records to be attached
17. Strength of organization to keep animals as per Annexure-1
18. Details of the staff employed as per Annexure-2
19. List of documents to be attached as per Annexure-3
I/We have read all the term and conditions for establishing institution for uneconomic cow progeny and
I/We undertake to abide by all the terms and conditions.
Signature of applicant :
Name of the applicant :
Address of the applicant :
Note - where over not applicable, especially in case of new organization, please write N.A.
Annexure - 1
Details of Beneficiaries
Sl. No.
Type and Breed of Animals
Adult
Young ones
Total
1.

Cattle (Indigenous)

2.

Cattle (Crossbred)

3.

Other Animals

Total Beneficiaries

Extra available capacity (sqr. ft)

.....sqr.

ft. (for cattle)

.....sqr.

ft. (for other animals)

Signature of applicant :

Date of Signature

Name of applicant

Annexure - 2

Details of the Staff Employed

Part I ? (Previous year)

i. Name of the Organization

ii. Address of the Organization

iii. Year

Sl. No.

Name and Address of Employee

Educational Qualification

Date of Appointment

Period for which Employed

Salary per month

Salary paid during the last year

Remarks

Part II ? (Current Year) i. Only notify change from the previous year.

ii. In case there is no change in the part 1 in the previous year please clarify as follows :

"No change in Staff particulars from the previous years".

Signature of applicant :

Date of Signature

Name of applicant

Annexure - 3

The list of documents required to be submitted for the establishment of Institutions for taking care of uneconomic cow progeny

1. Application in prescribed Proforma (copy enclosed)

2. Detailed proposal and its justification for construction of institution for uneconomic cow progeny;

3. Authenticated copy of the Registration Certificate under Societies Registration Act, 1860 (certified by the Registrar);

4. A copy of the Memorandum of Association;

5. Certified copy of rules and bye-laws of the organization;

6. Site Plan/Blue Print duly approved by the local authorities;

7. Registered lease/gift/sale deed. Lease deed should be for a period of minimum 30 years;

8. Attested copy of Revenue Record of land showing its title in the name of organization;

9. A certificate from the concerned Registrar/Sub Registrar along with documentary proof that the land on which institution for uneconomic cow progeny is proposed to be constructed is in the name of the organization and without any encumbrances (original copy);

10. The estimate showing the amount of financial assistance required for construction of institution for uneconomic cow progeny in relevant break-ups worked out and a certificate from the State Government Approved Valuer to the effect that the rates quoted for the construction of the proposed Shelter House are not more than prevailing PWD/CPWD rates;

11. List of members of Executive Committee and Journal Body (Name, Address, Telephone no.);
 12. Latest audited statement of accounts duly certified by the Chartered Accountant, in respect of the organization for the last financial year, in the under mentioned parts :
 - (i)
Balance Sheet;
 - (ii)
Income and Expenditure Statement;
 - (iii)
Receipt and Payment Statement;
 - (iv)
Audit Report.
 13. Details of animal Welfare activities performed so far and expenditure incurred for this purpose;
 14. Details of financial resources to run the proposed shelter house smoothly and area to be covered for rescue of animals;
 15. Details as to whether the organization has ever received any grant-in-aid from the Ministry or a WBI and if so, please indicate whether the Utilization Certificate of that grant has been submitted or not;
 16. Details of existing covered/constructed area, its capacity and proposed to be covered;
 17. Copy of Memorandum of Understanding/Agreement entered into with concerned local bodies (i.e. Municipal Corporation, Panchayat etc.) to the effect that the organization will accept stray animals from them to the extent of sheltering capacity for which the grant is sought;
 18. List of beneficiaries (as per Annexure-1);
 19. Detail of staff employed (as per Annexure-2).
- Related AI tags, queries and research notes
- Translation